

Ashish v. State of U.P. — recovery notice relegated to Clause 6.5

High Court of Judicature at Allahabad · Division Bench · 3 February 2021 · WRIT - C No. 1432 of 2021 · **Writ disposed; petitioner directed to a fresh Clause 6.5 representation; coercive action stayed until that decision.**

HEADNOTE

A Division Bench of the Allahabad High Court disposed of a writ seeking certiorari to quash a Poorvanchal Vidyut Vitran Nigam Limited recovery notice dated 17 December 2020 by directing the consumer to approach the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 by a fresh representation within 15 days, to be decided in accordance with law within one month after hearing, and restrained coercive action until that decision. The Court did not examine the notice on merits. A later correction substituted Badshahpur for Bulandshahr in the order.

FACTUAL SUMMARY

Ashish petitioned the Allahabad High Court to quash a recovery notice dated 17 December 2020 issued by the Executive Engineer of Poorvanchal Vidyut Vitran Nigam Limited at Badshahpur, Jaunpur. The Court granted the distribution licensee a week to take instructions. After a supplementary affidavit was taken on record, counsel for the Power Corporation submitted that the petitioner had a statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and that the competent authority would consider a representation within the stipulated period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

recovery-notice-alternate-remedy

HOLDING

Where a consumer seeks certiorari to quash a distribution licensee's recovery notice and the licensee points to Clause 6.5 of the U.P. Electricity Supply Code, 2005, the High Court may dispose of the writ by directing a fresh representation to the competent authority under Clause 6.5, to be decided in accordance with law after hearing within a stipulated period, and may stay coercive recovery until that decision, without examining the notice on merits. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ to quash PVVNL's 17.12.2020 recovery notice was disposed by relegating the consumer to Clause 6.5, without a merits decision on the notice. ¶ 1

6.5-representation-as-appropriate-remedy Accepting the licensee's submission, the Court directed a fresh Clause 6.5 representation within 15 days, to be decided within one month after hearing, with coercive action stayed meanwhile. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 17.12.2020

The Court did not examine whether the Poorvanchal Vidyut Vitran Nigam Limited recovery notice was lawful; it remitted the consumer to Clause 6.5. ¶ 1